

ASSIGNMENT – INDUSTRIAL DESIGN

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Part A – Procedure for Registration of Design

1. Explain the procedure for registration of an industrial design under the Designs Act, 2000.

The registration process protects the visual features of an article, such as its shape, configuration, pattern, ornament or composition of lines or colours. The main stages are:

- Filing of application: The proprietor/applicant files an application before the Controller of Designs in the prescribed manner.
- Form 1 and required documents: The application is made in the prescribed form and is accompanied by the required particulars, representations of the design, applicant details and prescribed fee.
- Representation of the design: Clear representations or drawings of the design are submitted so that the subject matter for which protection is sought can be identified.
- Statement of novelty: The applicant identifies the novel features of the design. This helps define what is claimed to be new.
- Classification of the article: The article is placed in the appropriate class under the applicable classification system.
- Payment of prescribed fees: The prescribed application and other applicable fees must be paid.
- Examination: The Designs Office examines the application to determine whether the statutory requirements are satisfied.
- Objections and hearing: If objections are raised, the applicant is given an opportunity to respond and, where required, to be heard.
- Acceptance and registration: When the requirements are satisfied and objections are overcome, the design is accepted and entered in the Register of Designs.
- Publication in the Patent Office Journal: Registration is published so that the registration becomes publicly known.
- Term and renewal: A registered design is protected for the statutory initial period and may be extended by the prescribed renewal process.

2. Why is examination an important stage in the registration of an industrial design?

Examination is important because it is the stage at which the Designs Office checks whether the application meets the legal requirements for registration. The examiner considers matters such as whether the subject matter qualifies as a design, whether it is new or original, whether it has been previously published or disclosed, whether the representations are clear, and whether other statutory requirements are satisfied. Objections can be communicated to the applicant, who may respond or attend a hearing where applicable.

3. Explain the term and renewal of a registered design.

- Initial period of protection: Registration gives protection for the statutory initial term prescribed by the Designs Act, 2000.
- Extension of protection: The proprietor can seek the statutory extension by applying for renewal and paying the prescribed fee within the permitted period.
- Importance of timely renewal: Timely renewal prevents the registration from expiring unnecessarily and helps the proprietor maintain exclusive rights for the full available period.

Part B – Assignment, Transmission and Licensing

4. What is the assignment of copyright in a registered design?

In the context of registered designs, assignment means transfer of proprietary rights in the registered design from one person to another. The person transferring the rights is the **assignor** and the person receiving them is the **assignee**.

- Complete assignment transfers the agreed proprietary rights substantially or entirely to the assignee.
- Partial assignment transfers only specified rights, subject to the terms of the agreement and applicable law.
- The scope of transferred rights should clearly identify what the assignee may do with the design.
- The agreement may specify duration and geographical area where the rights are to operate.
- Consideration/payment is the commercial value agreed between the parties for the transfer.
- A written agreement is important because it records the parties, rights transferred, consideration, territory, duration and restrictions.
- Assignment should be appropriately recorded with the Controller of Designs so that the Register reflects the current ownership/interest.

5. What is transmission of design rights?

Transmission is the passing of design ownership or interest by operation of law or by events such as succession, rather than by a negotiated sale or voluntary assignment.

- Death of proprietor: Rights may pass to the legal representative or successor according to applicable succession law.
- Inheritance: Ownership may devolve on heirs or beneficiaries.
- Company merger or dissolution: Rights may pass to a successor entity or be dealt with according to the legal process governing the company.
- Insolvency or bankruptcy: Design rights may become part of the estate administered under insolvency law.
- Trust or estate transfer: Rights can pass according to the relevant trust, estate or legal instrument.

Difference from assignment: Assignment is normally a voluntary contractual transfer made by agreement between parties. Transmission generally occurs because of a legal event or operation of law.

6. Explain licensing of a registered design.

A licence permits another person or business, the licensee, to use specified rights in a registered design while ownership remains with the proprietor/licensor.

- Rights retained by proprietor: Ownership remains with the proprietor unless a separate transfer occurs.
- Rights granted to licensee: The licence specifies the permitted acts, products, channels, territory and other conditions.
- Exclusive licence: The agreed licensee may receive exclusive use within the defined scope, subject to the agreement.
- Non-exclusive licence: The proprietor may grant rights to more than one licensee within the permitted scope.
- Royalty/consideration: Payment may be a fixed amount, royalty, percentage of sales, or another agreed consideration.
- Duration and territorial scope: The agreement should state how long and where the licence applies.
- Restrictions on use: Quality standards, product categories, sublicensing, assignment, branding and other restrictions may be specified.
- Termination and renewal: The agreement should state termination events and whether renewal is possible.

7. Differentiate between Assignment, Transmission and Licensing of a registered design.

Basis	Assignment	Transmission	Licensing
Ownership	Transfers agreed ownership rights	Passes by law/legal event	Remains with proprietor
Consent	Normally based on agreement	Not dependent on a voluntary transfer	Based on licence agreement
Method	Contractual transfer	Succession, merger, insolvency, etc.	Permission to use rights
Duration	As agreed, subject to law	Depends on legal event and applicable law	Specified in licence
Original owner	Loses transferred rights	Rights pass to successor	Retains ownership
Consideration	Usually agreed payment	Not necessarily a sale consideration	Usually royalty/fee

Basis	Assignment	Transmission	Licensing
Example	Designer sells rights to company	Rights pass to heir	Company permits manufacturer to use design

8. Case Study – Transfer of Design Rights

1. **Owner after assignment:** The watch company becomes the owner of the rights that were validly and completely assigned under the written agreement.
2. **Can the original designer license it?** If all relevant rights were completely assigned, the designer no longer has those rights to license to another company, unless the agreement expressly reserved a right.
3. **Importance of written agreement:** It provides evidence of the parties' intention and records the exact scope, consideration, duration, territory and rights transferred.
4. **Why record the assignment?** Recordal helps keep the official register accurate and provides public/legal evidence of the change in interest.
5. **Distinction from licence:** An assignment transfers proprietary rights; a licence generally permits use while ownership stays with the proprietor.

Part C – Cancellation of Registered Design

9. Explain the procedure for cancellation of a registered design under Section 19 of the Designs Act, 2000.

- Who can file: A person interested may apply for cancellation on the statutory grounds.
- Authority: The petition is made before the Controller of Designs as provided by the Designs Act and Rules.
- Form and fee: The prescribed form and applicable fee must be used.
- Grounds: Statutory grounds include that the design was previously registered, has been published in India or elsewhere before the registration date, is not new or original, is not a registrable design, or is otherwise not registrable under the Act.
- Supporting evidence: Relevant documents, prior publications, registrations, representations and other evidence may be filed.
- Response: The registered proprietor is given an opportunity to respond to the petition.
- Examination and hearing: The Controller considers the pleadings and evidence and may provide an opportunity of hearing.
- Decision: The Controller decides whether the statutory requirements for cancellation are established.
- Consequences: If cancellation is ordered, the registration is cancelled and the statutory exclusive protection associated with it ceases.
- Appeal: A person aggrieved by the Controller's decision may pursue the statutory appellate remedy.

10. Who is a "person interested" for the purpose of cancellation proceedings?

A person interested is a person who has a genuine interest in the validity of the registered design rather than a purely academic or remote interest. Competitors, manufacturers, licensees and other commercially affected parties may have such an interest because a registered design can affect their ability to manufacture, sell or compete in the relevant market.

11. What are the consequences of cancellation of a registered design?

- Registration: The registered design is cancelled in accordance with the Controller's order.
- Exclusive rights: The proprietor loses the statutory exclusive rights arising from that registration.
- Register of Designs: The cancellation is reflected in the official record.
- Commercial use: The cancelled registration can no longer be relied upon to restrain use merely on the basis of that registration, subject to any other independent rights that may exist.

Part D – Infringement of Industrial Design

12. What constitutes infringement of a registered design under Section 22 of the Designs Act, 2000?

- Unauthorized application: Applying the registered design or a fraudulent or obvious imitation to an article without the consent of the registered proprietor.
- Fraudulent or obvious imitation: Making a product using the registered design or an imitation that is fraudulent or obvious.
- Selling/offering for sale: Selling, hiring, offering or exposing for sale articles to which the infringing design has been applied.
- Importing: Importing for the purpose of sale or business an article bearing the registered design or an imitation.
- Publishing/exposing: Publishing or exposing articles for sale when the act falls within the prohibited conduct under Section 22.

13. Explain the "eye of the informed user" test for determining design infringement.

The comparison focuses on the overall visual impression created by the designs, viewed from the perspective of a person familiar with the relevant type of product and designs in that field. Important features include shape, configuration, pattern, ornamentation, lines, colours and the overall appearance. Visual similarity matters because design rights protect appearance rather than merely the underlying technical function.

14. Explain types of design infringement with examples.

- Direct infringement: A manufacturer applies the registered design to its own articles without consent. Example: copying a registered ornamental bottle shape onto competing bottles.
- Indirect/contributory infringement: A party knowingly facilitates or participates in conduct connected with infringing articles, depending on the applicable legal circumstances.
- Fraudulent imitation: A substantially deceptive reproduction is used so that the product takes the protected visual features without authorization.
- Commercial exploitation without consent: Infringing articles are manufactured, imported or commercially offered for sale without the proprietor's permission.

15. Case Study – Design Infringement

1. **Different brand name:** No. A different brand does not by itself prevent design infringement if the protected design has been applied without consent.
2. **Factors:** Compare the registered representation and the accused product's overall visual appearance, including the shape, configuration, pattern, ornamentation and other protected features.
3. **Exact copying:** No. Section 22 covers fraudulent or obvious imitation; exact identity is not necessarily required.
4. **Principle:** The statutory test concerning application of the registered design or fraudulent/obvious imitation, assessed through the visual appearance of the relevant articles, applies.
5. **Remedies:** The proprietor may seek the remedies available under the Designs Act, including damages/compensation and injunctive relief where available, along with other appropriate relief.

Part E – Remedies for Design Infringement

16. Explain the civil remedies available for infringement of a registered design.

- Injunction: A court may restrain the defendant from continuing prohibited acts.
- Temporary/pre-trial injunction: Interim relief may be sought while the case is pending where the legal requirements for such relief are satisfied.
- Permanent injunction: A final order may prohibit continuing infringement.
- Damages/compensation: The proprietor may seek monetary relief for the infringement, subject to the applicable statutory and judicial framework.
- Loss of profits/market share: Evidence of commercial loss may be relevant to the monetary relief sought.

- Reputation damage: Where legally provable and relevant, damage caused by infringing activity may be considered.
- Delivery, seizure or destruction: Courts may grant appropriate orders concerning infringing goods and materials as permitted by law.

17. Explain the administrative and penal consequences associated with fraudulent use of a registered design.

The Controller of Designs performs administrative functions connected with registration, examination, recordal and cancellation under the Designs Act and Rules. Fraudulent use of a registered design can also attract the statutory consequences provided by the Act, including monetary penalties and other remedies applicable to piracy of registered designs. The exact consequence depends on the conduct, proceedings and statutory provisions in force.

18. Why is timely enforcement important for protecting industrial design rights?

- Market surveillance helps identify suspicious products at an early stage.
- IP audits help confirm registrations, ownership, licences, assignments and renewal status.
- Early legal action can reduce the duration and commercial impact of unauthorized use.
- Evidence collection preserves representations, product samples, invoices, advertisements, dates and communications relevant to a dispute.
- Monitoring competitors helps identify possible copying, imitation or unauthorized commercialization.

Part F – Integrated Case Study

19. Case Study – Complete Design Protection Scenario

- 1. Rights obtained by StylePro:** Registration gives StylePro the statutory exclusive rights in the registered design for the protected term, subject to the Designs Act, including the right to take action against prohibited acts of piracy.
- 2. Agreement with manufacturer:** This is a **licence**, specifically a five-year royalty-bearing licence, because StylePro retains ownership while permitting the manufacturer to use the design on agreed terms.
- 3. Can the licensee automatically transfer its rights?** Not necessarily. A licence is personal/contractual according to its terms, and transfer or sublicensing normally depends on what the agreement permits and on applicable law. A clause requiring the proprietor's consent would have to be followed.
- 4. Earlier publication:** The earlier publication raises a prior-publication and novelty/originality issue. If the same or substantially relevant design was published before the registration date, the validity of the registration may be challenged.
- 5. Potential cancellation:** Yes. A registered design can potentially be cancelled if a statutory ground under Section 19 is established.
- 6. Relevant grounds:** The important possible ground is prior publication before the date of registration, along with lack of novelty or originality where the statutory requirements are satisfied.
- 7. Competitor's use:** If the competitor has applied the registered design or a fraudulent/obvious imitation without consent while the registration remains valid, the conduct may potentially amount to piracy/infringement under Section 22. However, validity concerns may affect enforcement and must be considered.
- 8. Remedies:** StylePro may seek appropriate civil remedies, such as injunction and monetary relief, subject to the court and applicable statutory requirements.
- 9. Role of Controller:** The Controller can perform statutory functions concerning the Register, examination and cancellation proceedings and decide matters assigned to the office under the Designs Act and Rules.
- 10. IP management:** Proper prior-art searches before filing, careful documentation of creation and ownership, clear licence/assignment clauses, recordal of interests, renewal tracking, contractual controls on sublicensing/transfer, market surveillance and early legal review could reduce these risks.

Note: The answers above are prepared directly around the questions and topics contained in the uploaded assignment. ■filecite■turn0file0■L2-L25■